ABBVIE INC. et al v. DR. REDDY'S LABORATORIES, LTD. et al

Plaintiff:	ALLERGAN PHARMACEUTICALS INTERNATIONAL LIMITED and ABBVIE INC.
Defendant:	DR. REDDY'S LABORATORIES, INC. and DR. REDDY'S LABORATORIES, LTD.
Case Number:	3:2026cv14354
Filed:	November 4, 2026
Court:	U.S. District Court for the District of New Jersey
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
November 4, 2026	**Filing 4** NOTICE of Appearance by MARK M. MAKHAIL on behalf of ABBVIE INC., ALLERGAN PHARMACEUTICALS INTERNATIONAL LIMITED (MAKHAIL, MARK)
November 4, 2026	**Filing 3** Corporate Disclosure Statement by ALLERGAN PHARMACEUTICALS INTERNATIONAL LIMITED identifying ABBVIE INC. as Corporate Parent.. (LINARES, JOSE)
November 4, 2026	**Filing 2** Corporate Disclosure Statement by ABBVIE INC.. (LINARES, JOSE)
November 4, 2026	**Filing 1** COMPLAINT against DR. REDDY'S LABORATORIES, INC., DR. REDDY'S LABORATORIES, LTD. (Filing and Admin fee $ 405 receipt number ANJDC-18158003) , Related Case Selected, filed by ABBVIE INC., ALLERGAN PHARMACEUTICALS INTERNATIONAL LIMITED. (Attachments: #1 Exhibit A - U.S. Patent No. 12,622,897, #2 Exhibit B - U.S. Patent No. 12,661,341, #3 Exhibit C - U.S. Patent No. 12,758,535, #4 Civil Cover Sheet)(LINARES, JOSE)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: AbbVie Inc. (Delaware) and Allergan Pharmaceuticals International Limited (Ireland)
  - Defendant: Dr. Reddy's Laboratories, Ltd. (India) and Dr. Reddy's Laboratories, Inc. (New Jersey)
  - Plaintiff's Counsel: McCarter & English, LLP
- Case Identification: 3:26-cv-14354, D.N.J., 11/04/2026
- Venue Allegations: Venue is asserted based on Defendant Dr. Reddy's Laboratories, Inc. having its principal place of business in New Jersey and Defendant Dr. Reddy's Laboratories, Ltd. being a foreign corporation subject to suit in any judicial district. Plaintiffs also allege that New Jersey is a likely destination for the generic products and that Defendants have previously availed themselves of the forum without challenging jurisdiction.
- Core Dispute: Plaintiffs allege that Defendants' submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of Plaintiffs' QULIPTA® (atogepant) tablets constitutes an act of patent infringement.
- Technical Context: The technology relates to specific methods of using atogepant, a calcitonin gene-related peptide (CGRP) receptor antagonist, for the preventive treatment of migraine in distinct patient populations.
- Key Procedural History: The complaint notes a prior lawsuit filed by Plaintiffs against Defendants on December 29, 2025, concerning different patents related to the same QULIPTA® product (the "First Suit"). The current action was commenced within 45 days of Plaintiffs' receipt of a notice letter from Defendants regarding the '897 patent.

Case Timeline

Date	Event
2021-02-09	Priority Date for '897 and '341 Patents
2021-09-28	FDA Approved NDA for QULIPTA®
2022-08-04	Priority Date for '535 Patent
2025-11-17	DRL's First Notice Letter Sent
2025-12-29	"First Suit" Filed by Plaintiffs

2026-04-06	DRL's Second Notice Letter Sent
2026-05-12	'897 Patent Issued
2026-06-23	'341 Patent Issued
2026-09-28	DRL's Third Notice Letter Sent
2026-10-13	'535 Patent Issued
2026-11-04	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,622,897 - Methods of Treating Migraine, issued May 12, 2026 ’897 Patent, front page

The Invention Explained

- Problem Addressed: The patent background describes migraine as a highly prevalent and disabling neurological condition with a significant unmet need for effective preventive treatments ’897 Patent, col. 1:26-34
- The Patented Solution: The patent claims specific methods for the preventive treatment of migraine using atogepant, a CGRP receptor antagonist, in specific patient subpopulations. The claimed methods provide tailored dosing regimens for patients with conditions that may alter the drug's metabolism or safety profile, such as those with severe renal impairment or those taking other specific medications like OATP inhibitors ’897 Patent, col. 7:5-18 ’897 Patent, col. 8:10-20 This allows for safe and effective use in patient groups that might otherwise face complications.
- Technical Importance: The invention provides specific, clinically tested dosing instructions that expand the safe use of atogepant to patient populations with common comorbidities or concurrent medications, which is a critical step in personalizing migraine therapy ’897 Patent, abstract

Key Claims at a Glance

The complaint identifies at least claim 1 as asserted Compl. ¶78 The patent contains two independent claims (1 and 6).

- Independent Claim 1 is a method for the preventive treatment of migraine in a patient with severe renal impairment or end-stage renal disease (CLcr<30 mL/min), comprising the step of:
    - administering 10 mg atogepant once daily.
- Independent Claim 6 is a method for the preventive treatment of migraine in a patient undergoing concurrent treatment with an OATP inhibitor, comprising the step of:
    - orally administering a therapeutically effective dose of 10 mg atogepant once daily.

U.S. Patent No. 12,661,341 - Methods of Treating Migraine, issued June 23, 2026 ’341 Patent, front page

The Invention Explained

- Problem Addressed: As with the '897 patent, the background describes the need for effective preventive migraine treatments ’341 Patent, col. 1:26-34
- The Patented Solution: The patent discloses methods for the preventive treatment of migraine by administering atogepant to patients with mild or moderate hepatic impairment. It establishes specific once-daily oral doses (10 mg, 30 mg, and 60 mg) that are safe and effective for this particular patient group, which is defined by the Child-Pugh scoring system ’341 Patent, abstract ’341 Patent, col. 9:1-24
- Technical Importance: By defining a safe dosing regimen for patients with liver impairment, the invention enables the use of atogepant in a broader patient population for whom drug metabolism and clearance could otherwise be a significant concern ’341 Patent, abstract

Key Claims at a Glance

The complaint does not identify specific asserted claims. The patent contains two independent claims (1 and 3).

- Independent Claim 1 is a method for the preventive treatment of episodic migraine in a patient with mild or moderate hepatic impairment, comprising the step of:
    - orally administering a dose selected from 10 mg, 30 mg, and 60 mg of atogepant once daily.

Multi-Patent Capsule

- Patent Identification: U.S. Patent No. 12,758,535, *Methods of Treating Migraine*, issued October 13, 2026 ’535 Patent, front page
- Technology Synopsis: The patent addresses the problem of drug-drug interactions by providing specific dosing regimens for migraine prevention with atogepant in patients

who are also taking drugs that induce the CYP3A4 enzyme ’535 Patent, abstract The patent claims methods of administering 30 mg or 60 mg of atogepant to counteract the effects of weak, moderate, or strong CYP3A4 inducers, thereby maintaining therapeutic efficacy ’535 Patent, col. 5:11-50

- Asserted Claims: The complaint identifies at least claims 1, 3, 7, and 9 as asserted Compl. ¶137
- Accused Features: The accused features are Defendants' proposed generic atogepant tablets and the accompanying label, which Plaintiffs allege will instruct for use in a manner that infringes these method claims for patients taking CYP3A4 inducers Compl. ¶¶136-137

III. The Accused Instrumentality

Product Identification

Defendants' proposed generic versions of QULIPTA® (atogepant) oral tablets in 10 mg, 30 mg, and 60 mg dosage forms, for which Defendants filed Abbreviated New Drug Application (ANDA) No. 220129 with the FDA Compl. ¶1 Compl. ¶53

Functionality and Market Context

The accused products are intended to be generic equivalents of AbbVie's branded QULIPTA® tablets, which are approved for the preventive treatment of migraine in adults Compl. ¶36 The complaint alleges that, to gain FDA approval, Defendants' generic products must be bioequivalent to QULIPTA® and that their proposed labeling must contain the same indications and conditions of use as the approved QULIPTA® label Compl. ¶65 Compl. ¶66 The filing of the ANDA is alleged to be an act of infringement under 35 U.S.C. § 271(e)(2)(A), signaling Defendants' intent to market the generic drug prior to the expiration of the patents-in-suit Compl. ¶2 Compl. ¶64

IV. Analysis of Infringement Allegations

The complaint alleges that Defendants will induce infringement of the asserted method-of-use patents by marketing their generic products with a package insert that instructs and encourages physicians and patients to use the drug in an infringing manner Compl. ¶78 Compl. ¶107 Compl. ¶137 The complaint does not include a copy of the proposed label or a detailed claim chart. The analysis below is based on the allegation that the Defendants' label will mirror the

label of the reference drug, QULIPTA®, which contains the dosing instructions covered by the patents.

No probative visual evidence provided in complaint.

'897 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method for the preventive treatment of migraine in a patient	Defendants' ANDA seeks approval for their atogepant tablets for the preventive treatment of migraine.	¶36; ¶53	col. 8:10-14
with severe renal impairment or end-stage renal disease (CLcr<30 mL/min),	The proposed product label is alleged to contain instructions for use in patients with severe renal impairment.	¶66; ¶78	col. 8:10-14
the method comprising administering 10 mg atogepant once daily to the patient.	The proposed label will allegedly instruct physicians to administer a 10 mg once-daily dose to this specific patient population.	¶66; ¶78	col. 8:14-15

'341 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method for the preventive treatment of episodic migraine in a	Defendants' ANDA seeks approval for a product indicated for	¶36; ¶66; ¶107	col. 9:8-10

patient with mild or moderate hepatic impairment,	preventive migraine treatment, and the proposed label is alleged to include instructions for patients with hepatic impairment.		
the method comprising orally administering a dose selected from 10 mg, 30 mg, and 60 mg of atogepant once daily to the patient.	The proposed label will allegedly instruct physicians to administer a 10 mg, 30 mg, or 60 mg once-daily dose to patients with mild or moderate hepatic impairment.	¶66; ¶107	col. 9:10-15

Identified Points of Contention

- Scope Questions: The central issue will be whether Defendants' final FDA-approved label for their generic product contains instructions that fall within the scope of the asserted method claims. As a general matter in Hatch-Waxman cases, a question may arise whether Defendants can or will "carve out" the patented methods of use from their proposed label to avoid infringement.
- Technical Questions: The dispute may turn on the precise definitions of the patient subpopulations. For example, a question may arise as to whether the diagnostic criteria for "mild or moderate hepatic impairment" described in the patent specification are sufficiently reflected in the language of the accused label to support a finding of induced infringement.

V. Key Claim Terms for Construction

The Term: "preventive treatment of... migraine"

- Context and Importance: This phrase defines the specific indication of the claimed method. Its construction is critical because infringement depends on the accused product's label instructing this specific use, rather than a more general or acute

treatment. Practitioners may focus on this term to dispute whether the instructions on the accused label directly map to the claimed "preventive" use.

- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: The detailed description broadly discusses treating migraine, which could support an argument that "preventive treatment" encompasses any administration that results in fewer migraines '897 Patent, col. 1:26-34
  - Evidence for a Narrower Interpretation: The specification details clinical trials with specific endpoints for prevention, such as a "change from baseline in mean monthly migraine days (MMD)" '897 Patent, col. 25:35-37 '897 Patent, FIG. 2 This could support a narrower construction tied to achieving a specific, clinically measured preventive effect.

The Term: "patient having [a specific condition]" (e.g., "mild or moderate hepatic impairment" from the '341 patent)

- Context and Importance: This term identifies the specific patient population for the claimed method. Infringement requires that the accused label instructs administration to this group. The definition of the condition and how it is diagnosed are central to whether the label induces infringement.
- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: A party could argue that a general instruction for dose adjustment in patients with "liver problems" is sufficient to meet this limitation.
  - Evidence for a Narrower Interpretation: The patent explicitly defines "hepatic impairment" by reference to the clinical Child-Pugh scoring system '341 Patent, col. 9:1-8 This provides strong evidence for a narrow and precise definition, suggesting that a generic label would need to use or reference similar criteria to be found infringing.

VI. Other Allegations

Indirect Infringement

The complaint alleges induced infringement under 35 U.S.C. § 271(b) for all three patents-in-suit Compl. ¶¶77-79 Compl. ¶¶106-108 Compl. ¶¶136-138 The factual basis for this allegation is that Defendants, with knowledge of the patents, will market their generic products with a package insert that instructs healthcare professionals and patients to perform the steps of the claimed methods, such as administering specific doses to specific patient populations.

Willful Infringement

The complaint does not contain an explicit count for willful infringement or a request for enhanced damages under 35 U.S.C. § 284. It does allege that Defendants have knowledge of the '897 patent via a "Third Notice Letter" Compl. ¶77 and provides notice of the '341 and '535 patents through the complaint itself Compl. ¶100 Compl. ¶130 The prayer for relief requests a declaration that the case is "exceptional" for the purpose of awarding attorney fees under 35 U.S.C. § 285 Compl. Prayer F

VII. Analyst’s Conclusion: Key Questions for the Case

This Hatch-Waxman action centers on the interplay between patent claim scope and FDA labeling requirements. The central questions for the court appear to be:

1. A core issue will be one of induced infringement: Can Plaintiffs prove that the final, FDA-approved label for Defendants’ generic atogepant will necessarily instruct or encourage physicians to prescribe the drug in a manner that directly practices the specific dosing regimens claimed in the patents-in-suit? This will involve a close analysis of the label language and the legal standard for inducement.
2. A second key issue will be one of patent validity: Defendants' Paragraph IV certifications allege that the patents are invalid, unenforceable, and/or will not be infringed Compl. ¶57, raising the question whether the claimed methods of use are valid. The case may turn on whether tailoring a dosing regimen for specific, well-known patient populations (e.g., those with renal/hepatic impairment or taking interacting drugs) was an inventive step or merely a routine and obvious optimization for a person of ordinary skill in the art of pharmacology.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY

ABBVIE INC. and ALLERGAN PHARMACEUTICALS INTERNATIONAL LIMITED,	)	
Plaintiffs,	)	Civil Action No.:_____
v.	)	
DR. REDDY'S LABORATORIES, LTD. and DR. REDDY'S LABORATORIES, INC.,	)	
Defendants.	)	

COMPLAINT

Plaintiffs AbbVie Inc. ("AbbVie") and Allergan Pharmaceuticals International Limited ("Allergan") (collectively, "Plaintiffs"), by its attorneys, bring this action against Defendants Dr. Reddy's Laboratories, Ltd. and Dr. Reddy's Laboratories, Inc. (collectively, "DRL") and allege as follows:

NATURE OF THE ACTION

1. This is a civil action for patent infringement of U.S. Patent Nos. 12,622,897 ("the '897 patent"), 12,661,341 ("the '341 patent"), and 12,758,535 ("the '535 patent") (collectively, "the Patents-in-Suit") arising under the United States Patent Laws, Title 35, United States Code, § 1, *et seq.*, and in particular under 35 U.S.C. § 271, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202. This action relates to DRL's recent submission to the United States Food and

Drug Administration ("FDA") of an Abbreviated New Drug Application ("ANDA") seeking approval to market generic versions of Plaintiffs' commercial pharmaceutical product QULIPTA® (atogepant) oral tablets in 10 mg, 30 mg, and 60 mg dosage forms ("QULIPTA® Tablets") submitted under New Drug Application ("NDA") No. 215206, prior to the expiration of patents listed in the *Approved Drug Products with Therapeutic Equivalence Evaluations* (an FDA publication commonly known as the "Orange Book") for QULIPTA® Tablets. DRL has submitted ANDA No. 221029 ("DRL's ANDA"), which seeks approval to market its generic version of QULIPTA® Tablets, atogepant oral tablets, 10 mg, 30 mg, 60 mg ("DRL's generic products"), prior to the expiration of the Patents-in-Suit.

2. DRL has infringed one or more claims of the Patents-in-Suit under 35 U.S.C. § 271(e)(2)(A) by virtue of its filing of ANDA No. 221029 seeking FDA approval for the commercial manufacture, use, import, offer for sale, and/or sale in the United States of DRL's generic products prior to the expiration of the Patents-in-Suit, or any extensions thereof. DRL will infringe one or more claims of the Patents-in-Suit under 35 U.S.C. § 271(a), (b), and/or (c) should it engage in the commercial manufacture, use, offer for sale, sale, distribution in, or importation into the United States of DRL's generic products prior to the expiration of the Patents-in-Suit, or any extensions thereof.
3. Plaintiffs previously filed a separate action in this Court against DRL for patent infringement, which included counts for infringement of U.S. Patent Nos. 12,090,148 ("the '148 patent"), 12,350,259 ("the '259 patent"), 12,383,545 ("the '545 patent"), and 12,465,598 ("the '598 patent"). *AbbVie Inc. v. Dr. Reddy's Laboratories, Ltd.*, C.A. No. 3:25-cv-19039 (the "First Suit") was filed on December 29, 2025. The First Suit was filed in response to a letter from DRL dated November 17, 2025 ("DRL's First Notice Letter"), purporting to be a notice letter "[p]ursuant to § 505(j)(2)(B)(ii)-(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95," including reference to the '148, '259, and '545 patents. Plaintiffs received a second letter sent by DRL ("DRL's Second Notice Letter") dated April 6, 2026, purporting to be a notice letter "[p]ursuant to § 505(j)(2)(B)(ii)-(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95," including reference to the '598 patent.
4. Based on information and belief, DRL is maintaining its purported certification as to the '148, '259, '545, and '598 patents set out in DRL's First Notice Letter and DRL's Second Notice Letter. Thus, Plaintiffs will continue to prosecute all infringement counts presented in the First Suit.

THE PARTIES

5. Plaintiff AbbVie is a corporation organized and existing under the laws of Delaware, with its corporate headquarters at 1 North Waukegan Road, North Chicago, Illinois 60064. AbbVie holds NDA No. 215206 for QULIPTA® Tablets.
6. AbbVie is a global research and development-based biopharmaceutical company committed to developing innovative therapies for some of the world's most complex and critical conditions. The company's mission is to use its expertise,

dedicated people, and unique approach to innovation to markedly improve treatments across therapeutic areas, including migraine treatment.

7. AbbVie markets, distributes, and sells therapeutic drug products, including QULIPTA® Tablets, in this judicial district and throughout the United States.
8. Plaintiff Allergan is a corporation organized and existing under the laws of Ireland, with a principal place of business at Clonshaugh Business & Technical Park, Dublin 17, Ireland D17 E400. Allergan is the assignee of the '897, '341, and '535 patents. Allergan is an indirectly wholly owned subsidiary of AbbVie.
9. Plaintiffs allege the following about DRL on information and belief formed after a reasonable inquiry.
10. Dr. Reddy's Laboratories, Ltd. ("DRL Ltd.") is a corporation organized and existing under the laws of India, having a principal place of business at 8-2-337, Road No. 3, Banjara Hills, Hyderabad, Telangana, India 500034.
11. Dr. Reddy's Laboratories, Inc. ("DRL Inc.") is a corporation organized under the laws of New Jersey, having a principal place of business at 600 College Road East, 4th floor, Princeton, New Jersey 08540. DRL Inc. is a wholly owned subsidiary of DRL Ltd.
12. DRL is in the business of, *inter alia*, manufacturing, marketing, and selling generic copies of branded pharmaceutical products throughout the United States, including in this judicial district.
13. Following any FDA approval of DRL's ANDA, DRL will distribute and sell the proposed DRL generic products described in DRL's ANDA throughout the United States, including in this judicial district.

JURISDICTION AND VENUE

14. This action arises under the patent laws of the United States, 35 U.S.C. § 1, *et seq.*, including 35 U.S.C. § 271, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.
15. This Court has subject matter jurisdiction over this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.
16. This Court has personal jurisdiction over Defendant DRL Ltd. DRL Ltd. is in the business of manufacturing, marketing, importing, and selling pharmaceutical drug products, including generic drug products. DRL Ltd. directly, or indirectly, develops, manufactures, markets, and sells generic drugs throughout the United States and in this judicial district. DRL Ltd. has purposefully conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of DRL's generic products upon approval of DRL's ANDA.
17. This Court has personal jurisdiction over Defendant DRL Inc. DRL Inc. is in the business of manufacturing, marketing, importing, and selling pharmaceutical drug products, including generic drug products. DRL Inc. directly, or indirectly, develops, manufactures, markets, and sells generic drugs throughout the United States and in this judicial district. DRL Inc. has purposefully conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of DRL's generic products upon approval of DRL's ANDA.
18. DRL Inc. is a United States agent for DRL Ltd. https://www.drreddys.com/contact-us#global-locations (listing "Dr. Reddy's

Laboratories Inc., 107 College Road East, Princeton, NJ 08540. USA" under "Global Locations," "USA") (last visited Nov. 4, 2026). DRL Inc. is registered with the State of New Jersey's Division of Revenue and Enterprise under Entity ID No. 0100518911, and is registered as a drug distributor with the New Jersey Department of Health under Permit No. 5002312.

19. DRL Ltd. and DRL Inc. hold themselves out as a unitary entity and operate as a single integrated business with respect to the regulatory approval, manufacturing, marketing, sale, and distribution of generic pharmaceutical products throughout the United States, including in this judicial district.

20. DRL Ltd. and DRL Inc. each directly or indirectly currently sells significant quantities of generic drug products and derives substantial revenue from the sale of those products in the United States and in this judicial district. DRL's website states its "success in the generics market comes from launching new products." https://www.drreddys.com/generics (last visited Nov. 4, 2026). Further, according to DRL's website, DRL's "portfolio spans over 230 products," and DRL has "been present in the North American region, which includes the US and Canada, since the mid-1990s. It is our largest business, with revenue in FY'22 reaching a historic milestone of $1 billion, and FY'25 closing at approximately $1.7 billion." *Id.*

21. DRL's website further states that DRL has "347 Cumulative Abbreviated New Drug Applications," "339 Final approved Abbreviated New Drug Applications (ANDAs)," and "280 Active US Drug Master Files." https://www.drreddys.com (last visited Nov. 4, 2026). Further, DRL Inc.'s US website states that "Dr. Reddy's in United States" launches products "across the United States." https://www.drreddysusa.com/ (last visited Nov. 4, 2026).

22. The acts of DRL Inc. complained of herein were done with the cooperation, participation, and assistance of DRL Ltd., and the acts of DRL Ltd. complained of herein were done with the cooperation, participation, and assistance of DRL Inc.

23. DRL's ANDA filing regarding the Patents-in-Suit relates to this litigation and is substantially connected with this judicial district because it predicts DRL's intent to market and sell DRL's generic products, including DRL's generic versions of Plaintiffs' QULIPTA® Tablets, in this judicial district.

24. DRL Ltd. and DRL Inc. have thus been, and continue to be, joint and prime actors in the drafting, submission, approval and maintenance of ANDA No. 221029.

25. Following FDA approval of ANDA No. 221029, DRL will import, market, distribute, offer for sale, and/or sell DRL's generic products described in ANDA No. 221029 throughout the United States, including in New Jersey and will derive substantial revenue from the use, consumption, or sale of DRL's generic products in the state of New Jersey.

26. If ANDA No. 221029 is approved, DRL's generic products will be marketed, distributed, offered for sale, and/or sold in New Jersey; prescribed by healthcare providers practicing in New Jersey; administered by healthcare providers located

within New Jersey; and/or used by patients in New Jersey, all of which will have a substantial effect on New Jersey.

27. If ANDA No. 221029 is approved, Plaintiffs will be harmed by the marketing, distribution, offer for sale, and/or sale of DRL's generic products, including in New Jersey.

28. This Court also has personal jurisdiction over DRL because, *inter alia*, DRL has availed itself of this forum previously for the purpose of litigating a patent dispute. DRL Ltd. and DRL Inc. have been sued multiple times in this district without challenging personal jurisdiction. See, e.g., *AbbVie Inc., et al. v. Dr. Reddy's Lab'ys, Ltd., et al.*, No. 25-19039, D.I. 31 (D.N.J. Mar. 24, 2026); *Intra-Cellular Therapies, Inc. v. Dr. Reddy's Lab'ys, Inc. et al.*, No. 24-4264, D.I. 69 (D.N.J. Oct. 29, 2024); *Impax Lab'ys, LLC v. Dr. Reddy's Lab'ys, Ltd. et al.*, No. 24-7875, D.I. 9 (D.N.J. Nov. 18, 2024); *Am. Regent, Inc. v. Dr. Reddy's Lab'ys, Inc. et al.*, No. 24-7799, D.I. 16 (D.N.J. Aug. 27, 2024); *Vifor (Int'l) AG et al v. Dr. Reddy's Lab'ys, Ltd. et al.*, No. 24-6833, D.I. 35 (D.N.J. Sep. 9, 2024); *Eisai R&D Mgmt. Co., Ltd. et al. v. Dr. Reddy's Lab'ys, Inc. et al.*, No. 24-6765, D.I. 11 (D.N.J. Aug. 13, 2024); *Esperion Therapeutics, Inc. v. Dr. Reddy's Lab'ys, Inc. et al.*, No. 24-6391, D.I. 11 (D.N.J. July 23, 2024); *Novo Nordisk Inc. et al. v. Dr. Reddy's Lab'ys, Ltd. et al.*, No. 23-22112, D.I. 12 (D.N.J. Feb. 5, 2024); *Bausch & Lomb Inc. et al. v. Dr. Reddy's Lab'ys, Ltd. et al.*, No. 23-3463, D.I. 10 (D.N.J. Nov. 11, 2023); *Celgene Corp. v. Dr. Reddy's Lab'ys, Ltd. et al.*, No. 21-2111, D.I. 10 (D.N.J. Apr. 23, 2021).

29. This Court also has personal jurisdiction over DRL because DRL did not contest jurisdiction in the First Suit.

30. For these reasons and for other reasons that will be presented to the Court if jurisdiction is challenged, the Court has personal jurisdiction over DRL.

31. Venue is proper in this judicial district under 28 U.S.C. §§ 1391 and 1400(b), because DRL Ltd. is incorporated in India and may be sued in any judicial district in the United States, and for all the reasons set forth above.

32. Venue is proper in this judicial district under 28 U.S.C. §§ 1391 and 1400(b), because DRL Inc. has a principal place of business in New Jersey, and for all the reasons set forth above.

FACTUAL BACKGROUND

QULIPTA® and the NDA

33. AbbVie is the holder of New Drug Application ("NDA") No. 215206 for QULIPTA® (atogepant) tablets in 10 mg, 30 mg, and 60 mg dosage forms.

34. The FDA approved NDA No. 215206 on September 28, 2021.

35. The FDA Orange Book for NDA No. 215206 for QULIPTA® (atogepant) oral tablets, 10 mg, 30 mg, 60 mg, lists the '148 patent, the '259 patent, the '545 patent, the '598 patent, and the '897 patent, as well as U.S. Patent Nos. 8,754,096 ("the '096 patent"), 9,499,545 ("the '9545 patent"), 9,850,246 ("the '246 patent"), and 10,117,836 ("the '836 patent").

36. QULIPTA® Tablets are approved for the preventive treatment of migraine in adults. Atogepant is the active ingredient of QULIPTA® Tablets. Atogepant is a calcitonin gene-related (CGRP) receptor antagonist.

37. Migraine is a debilitating disease. Migraine impacts more than 37 million men, women, and children in the United States. Migraine costs millions of dollars each year in the United States due to direct medical expenses and lost productivity. Migraine is also associated with other illnesses.

38. For episodic migraine, the recommended dose of QULIPTA® Tablets is 10 mg, 30 mg, or 60 mg taken orally with or without food, once daily. For chronic migraine, the recommended dose of QULIPTA® Tablets is 60 mg taken orally with or without food, once daily. For patients with mild or moderate hepatic impairment, the recommended dose is 10 mg, 30 mg, or 60 mg to prevent episodic migraine and 60 mg once daily to prevent chronic migraine. The FDA approved the inclusion of this safe and effective dosing regimen for QULIPTA® for patients with mild or moderate hepatic impairment, and information concerning these patients is included in the QULIPTA® Label. For patients who concomitantly use OATP inhibitors, the recommended dose is 10 mg or 30 mg once daily to prevent episodic migraine and 30 mg once daily to prevent chronic migraine. The FDA approved the inclusion of this safe and effective dosing regimen for QULIPTA® for patients who concomitantly use OATP inhibitors, and information concerning these patients is included in the QULIPTA® Label. For patients who concomitantly use strong CYP3A4 inducers, the recommended dose is 60 mg once daily to prevent episodic migraine; for patients who concomitantly use moderate CYP3A4 inducers, the recommended dose is 60 mg once daily to prevent episodic migraine; and for patients who concomitantly use weak CYP3A4 inducers, the recommended dose is 30 mg or 60 mg to prevent episodic migraine and 60 mg once daily to prevent chronic migraine. The FDA approved the inclusion of this safe and effective dosing regimen for QULIPTA® for patients who concomitantly use CYP3A4 inducers, and information concerning these patients is included in the QULIPTA® Label.

39. To date, only two orally available CGRP receptor antagonists have been approved by the FDA for preventive treatment of migraine. The prescribing information for the other, NURTEC® ODT, is silent on concomitant use with OATP inhibitors. The prescribing information for NURTEC® ODT further states that use of the drug should be avoided in patients who concomitantly use strong or moderate CYP3A inducers. Thus, QULIPTA® Tablets are the only orally available CGRP receptor antagonist in the United States indicated for preventive treatment of migraine with a recommended dosage modification for patients who concomitantly use OATP inhibitors and patients who concomitantly use strong or moderate CYP3A4 inducers.

40. QULIPTA® Tablets are marketed and sold in the United States by AbbVie.

The Patents-in-Suit

41. The ’897 patent, titled “Methods of Treating Migraine,” was duly and legally issued by the United States Patent and Trademark Office (“USPTO”) on May 12, 2026. A true and correct copy of the ’897 patent is attached as Exhibit A.

42. Allergan is the assignee of the ’897 patent through assignment as recorded by the USPTO at Reel 70393, Frame 0388.

43. The ’897 patent currently expires on September 27, 2042.

44. The ’897 patent is listed in the FDA Orange Book in connection with NDA No. 215206 for QULIPTA® (atogepant) oral tablets, 10 mg and 30 mg.
45. The ’341 patent, titled “Methods of Treating Migraine,” was duly and legally issued by the USPTO on June 23, 2026. A true and correct copy of the ’341 patent is attached as Exhibit B.
46. Allergan is the assignee of the ’341 patent through assignment as recorded by the USPTO at Reel 70393, Frame 0388.
47. The ’341 patent currently expires on September 27, 2042.
48. The ’341 patent covers the QULIPTA® (atogepant) oral tablets, 10 mg, 30 mg, and 60 mg, NDA No. 215206, in the FDA Orange Book.
49. The ’535 patent, titled “Methods of Treating Migraine,” was duly and legally issued by the USPTO on October 13, 2026. A true and correct copy of the ’535 patent is attached as Exhibit C.
50. Allergan is the assignee of the ’535 patent through assignment as recorded by the USPTO at Reel 70393, Frame 0388.
51. The ’535 patent currently expires on September 27, 2042.
52. The ’535 patent covers the QULIPTA® (atogepant) oral tablets, 30 mg and 60 mg, NDA No. 215206, in the FDA Orange Book.

DRL’s ANDA No. 221029

53. DRL filed ANDA No. 221029 with the FDA under 21 U.S.C. § 355(j) to obtain FDA approval for the commercial manufacture, use, import, offer for sale, and/or sale in the United States of atogepant oral tablets, 10 mg, 30 mg, 60 mg, which are generic versions of AbbVie’s QULIPTA® Tablets.
54. DRL’s First Notice Letter represents that DRL’s ANDA No. 221029 contains a Paragraph IV certification alleging that the claims of the ’148, ’259, and ’545 patents are invalid, unenforceable, and/or not infringed by DRL’s generic products.
55. DRL’s Second Notice Letter represents that DRL’s ANDA No. 221029 contains a Paragraph IV certification alleging that the claims of the ’598 patent are invalid, unenforceable, and/or not infringed by DRL’s generic products.
56. Plaintiffs received a third letter sent by DRL (“DRL’s Third Notice Letter”), dated September 28, 2026, purporting to be a notice letter “[p]ursuant to § 505(j)(2)(B)(ii)-(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95.”
57. DRL’s Third Notice Letter represents that DRL’s ANDA No. 221029 contains a Paragraph IV certification alleging that the claims of the ’897 patent are invalid, unenforceable, and/or not infringed by DRL’s generic products.
58. DRL’s Third Notice Letter and the information contained therein, coupled with regulatory requirements, demonstrate DRL’s infringement of the ’897 patent.
59. Plaintiffs have not yet received a Notice of Paragraph IV Certification regarding DRL’s ANDA No. 221029 for the ’341 patent under Section 505(j)(2)(B)(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95.

60. DRL's First Notice Letter, DRL's Second Notice Letter, and DRL's Third Notice Letter, coupled with regulatory requirements, demonstrate DRL's infringement of the '341 patent.
61. Plaintiffs have not yet received a Notice of Paragraph IV Certification regarding DRL's ANDA No. 221029 for the '535 patent under Section 505(j)(2)(B)(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95.
62. DRL's First Notice Letter, DRL's Second Notice Letter, and DRL's Third Notice Letter, coupled with regulatory requirements, demonstrate DRL's infringement of the '535 patent.
63. Plaintiffs have not yet received a Notice of Paragraph IV Certification regarding DRL's ANDA No. 221029 for the '096, '9545, '246, or '836 patents under Section 505(j)(2)(B)(iv) of the Federal Food, Drug, and Cosmetic Act and 21 C.F.R. § 314.95. Further, DRL's First Notice Letter, DRL's Second Notice Letter, and DRL's Third Notice Letter do not state or otherwise indicate that DRL submitted a Paragraph IV certification for the '096, '9545, '246, or '836 patents, each of which is listed in the FDA Orange Book for QULIPTA® (atogepant) oral tablets, 10 mg, 30 mg, 60 mg. Accordingly, DRL submitted a Paragraph III certification for the '096, '9545, '246, and '836 patents. DRL will thus not launch a generic product under ANDA No. 221029 at least before September 28, 2035.
64. DRL's purpose in submitting ANDA No. 221029 and a Paragraph IV certification is to market DRL's generic products before the expiration of the '148, '259, '545, '598, and '897 patents. DRL intends to market DRL's generic products before the expiration of the '897, '341, and '535 patents.
65. To obtain approval of an ANDA for a generic drug, an ANDA applicant must show, *inter alia*, that the generic drug is bioequivalent to its reference listed drug. See 21 U.S.C. § 355(j)(2)(A)(iv). If approved, DRL's generic products will be bioequivalent to AbbVie's QULIPTA® Tablets.
66. To obtain approval of an ANDA for a generic drug, an ANDA applicant must also show, *inter alia*, that the conditions of use prescribed, recommended, or suggested in the proposed labeling have been previously approved for its reference listed drug. See 21 U.S.C. § 355(j)(2)(A)(i). Further, the FDA will refuse to approve an ANDA if the labeling proposed for a generic drug product differs from the labeling approved for its reference listed drug product and such differences make the proposed generic drug product less safe or effective. See 21 C.F.R. § 314.127(a)(7). If approved, DRL's generic products will have the same indication and safety and efficacy information as AbbVie's QULIPTA® Tablets.
67. Following FDA approval of DRL's ANDA No. 221029, DRL will make, use, sell, and/or offer to sell DRL's generic products throughout the United States, or import such generic products into the United States before the Patents-in-Suit expire. The manufacture, use, offer for sale, sale, and/or importation of DRL's generic products will directly infringe the Patents-in-Suit.
68. Following FDA approval of DRL's ANDA No. 221029, DRL will actively induce or contribute to the manufacture, use, offer for sale, and/or sale of DRL's generic products in a manner that infringes the Patents-in-Suit.

69. Plaintiffs commenced this action within 45 days of receiving DRL's Third Notice Letter.

COUNT I

INFRINGEMENT BY DRL OF THE '897 PATENT

70. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

71. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL's generic products in the United States before the expiration of the '897 patent.

72. DRL's Third Notice Letter states that DRL submitted to the FDA, a certification that the claims of the '897 patent are purportedly invalid, unenforceable, and/or will not be infringed.

73. DRL represented to the FDA that DRL's generic products are pharmaceutically and therapeutically equivalent to AbbVie's QULIPTA® Tablets.

74. Under 35 U.S.C. § 271(e)(2)(A), the submission to the FDA of DRL's ANDA seeking approval for the commercial manufacture, use, or sale of DRL's generic products before the expiration date of the '897 patent, constitutes infringement, either literally or under the doctrine of equivalents.

75. After FDA approval of DRL's ANDA, DRL will infringe one or more claims of the '897 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL's generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL's ANDA shall be no earlier than the expiration of the '897 patent and any additional periods of exclusivity.

76. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL's generic products for which approval is sought in DRL's ANDA, and therefore will infringe at least one claim in the '897 patent.

77. DRL had knowledge of the '897 patent, as evidenced by DRL's Third Notice Letter, and, by its promotional activities and proposed package insert for DRL's generic products, knows or should know that it will induce direct infringement of at least one of the claims of the '897 patent, either literally or under the doctrine of equivalents.

78. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL's generic products according to the instructions in the proposed package insert in a way that directly infringes the '897 patent.

79. The offering to sell, sale, making, and/or importation of DRL's generic products will actively induce infringement of at least one of the claims of the '897 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the '897 patent, as evidenced by DRL's Third Notice Letter.

80. If DRL's ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL's generic products.

81. DRL's actions relating to DRL's ANDA complained of herein were done by and for the benefit of DRL.

82. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the '897 patent.

83. Plaintiffs do not have an adequate remedy at law.

COUNT II

DECLARATORY JUDGMENT OF INFRINGEMENT BY DRL OF THE '897 PATENT

84. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

85. Plaintiffs' claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201-02.

86. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL's generic products in the United States before the expiration of the '897 patent.

87. DRL represented to the FDA that DRL's generic products are pharmaceutically and therapeutically equivalent to AbbVie's QULIPTA® Tablets.

88. After FDA approval of DRL's ANDA, DRL will infringe one or more claims of the '897 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL's generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL's ANDA shall be no earlier than the expiration of the '897 patent and any additional periods of exclusivity.

89. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL's generic products for which approval is sought in DRL's ANDA, and therefore will infringe at least one claim in the '897 patent.

90. DRL had knowledge of the '897 patent, as evidenced by DRL's Third Notice Letter, and, by its promotional activities and proposed package insert for DRL's generic products, knows or should know that it will induce direct infringement of at least one of the claims of the '897 patent, either literally or under the doctrine of equivalents.

91. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL's generic products according to the instructions in the proposed package insert in a way that directly infringes the '897 patent.

92. The offering to sell, sale, making, and/or importation of DRL's generic products would actively induce infringement of at least one of the claims of the '897 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the '897 patent, as evidenced by DRL's Third Notice Letter.

93. If DRL's ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL's generic products.

94. DRL's actions relating to DRL's ANDA complained of herein were done by and for the benefit of DRL.

95. DRL's infringing activity, including the manufacture, use, import, offer to sell, and/or sale of DRL's generic products in the United States, will begin immediately after FDA approves DRL's generic products. Such activity before the expiration of the '897 patent will constitute infringement of one or more claims of the '897 patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

96. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and DRL concerning liability for the infringement of the '897 patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

97. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the '897 patent.

98. Plaintiffs do not have an adequate remedy at law.

COUNT III
INFRINGEMENT BY DRL OF THE '341 PATENT

99. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

100. This Complaint provides notice of the '341 patent to the extent that DRL did not already have notice of this patent.

101. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL's generic products in the United States before the expiration of the '341 patent.

102. DRL represented to the FDA that DRL's generic products are pharmaceutically and therapeutically equivalent to AbbVie's QULIPTA® Tablets.

103. Under 35 U.S.C. § 271(e)(2)(A), the submission to the FDA of DRL's ANDA seeking approval for the commercial manufacture, use, or sale of DRL's generic products before the expiration date of the '341 patent, constitutes infringement, either literally or under the doctrine of equivalents.

104. After FDA approval of DRL's ANDA, DRL will infringe one or more claims of the '341 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL's generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL's ANDA shall be no earlier than the expiration of the '341 patent and any additional periods of exclusivity.

105. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL's generic products for which approval is sought in DRL's ANDA, and therefore will infringe at least one claim in the '341 patent.

106. DRL had knowledge of the '341 patent and, by its promotional activities and proposed package insert for DRL's generic products, knows or should know that

it will induce direct infringement of at least one of the claims of the ’341 patent, either literally or under the doctrine of equivalents.

107. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL’s generic products according to the instructions in the proposed package insert in a way that directly infringes the ’341 patent.

108. The offering to sell, sale, making, and/or importation of DRL’s generic products will actively induce infringement of at least one of the claims of the ’341 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the ’341 patent.

109. If DRL’s ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL’s generic products.

110. DRL’s actions relating to DRL’s ANDA complained of herein were done by and for the benefit of DRL.

111. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the ’341 patent.

112. Plaintiffs do not have an adequate remedy at law.

COUNT IV
DECLARATORY JUDGMENT OF INFRINGEMENT BY DRL OF THE ’341 PATENT

113. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

114. Plaintiffs’ claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201-02.

115. This Complaint provides notice of the ’341 patent to the extent that DRL did not already have notice of this patent.

116. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL’s generic products in the United States before the expiration of the ’341 patent.

117. DRL represented to the FDA that DRL’s generic products are pharmaceutically and therapeutically equivalent to AbbVie’s QULIPTA® Tablets.

118. After FDA approval of DRL’s ANDA, DRL will infringe one or more claims of the ’341 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL’s generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL’s ANDA shall be no earlier than the expiration of the ’341 patent and any additional periods of exclusivity.

119. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL’s generic products for which approval is sought in DRL’s ANDA, and therefore will infringe at least one claim in the ’341 patent.

120. DRL had knowledge of the ’341 patent and, by its promotional activities and proposed package insert for DRL’s generic products, knows or should know that it will induce direct infringement of at least one of the claims of the ’341 patent, either literally or under the doctrine of equivalents.

121. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL’s generic products according to the instructions in the proposed package insert in a way that directly infringes the ’341 patent.

122. The offering to sell, sale, making, and/or importation of DRL’s generic products would actively induce infringement of at least one of the claims of the ’341 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the ’341 patent.

123. If DRL’s ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL’s generic products.

124. DRL’s actions relating to DRL’s ANDA complained of herein were done by and for the benefit of DRL.

125. DRL’s infringing activity, including the manufacture, use, import, offer to sell, and/or sale of DRL’s generic products in the United States, will begin immediately after FDA approves DRL’s generic products. Such activity before the expiration of the ’341 patent will constitute infringement of one or more claims of the ’341 patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

126. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and DRL concerning liability for the infringement of the ’341 patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

127. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the ’341 patent.

128. Plaintiffs do not have an adequate remedy at law.

COUNT V
INFRINGEMENT BY DRL OF THE ’535 PATENT

129. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

130. This Complaint provides notice of the ’535 patent to the extent that DRL did not already have notice of this patent.

131. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL’s generic products in the United States before the expiration of the ’535 patent.

132. DRL represented to the FDA that DRL’s generic products are pharmaceutically and therapeutically equivalent to AbbVie’s QULIPTA® Tablets.

133. Under 35 U.S.C. § 271(e)(2)(A), the submission to the FDA of DRL’s ANDA seeking approval for the commercial manufacture, use, or sale of DRL’s generic

products before the expiration date of the ’535 patent, constitutes infringement, either literally or under the doctrine of equivalents.

134. After FDA approval of DRL’s ANDA, DRL will infringe one or more claims of the ’535 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL’s generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL’s ANDA shall be no earlier than the expiration of the ’535 patent and any additional periods of exclusivity.

135. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL’s generic products for which approval is sought in DRL’s ANDA, and therefore will infringe at least one claim in the ’535 patent.

136. DRL has knowledge of the ’535 patent and, by its promotional activities and proposed package insert for DRL’s generic products, knows or should know that it will induce direct infringement of at least one of the claims of the ’535 patent, either literally or under the doctrine of equivalents.

137. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL’s generic products according to the instructions in the proposed package insert in a way that directly infringes the ’535 patent.

138. The offering to sell, sale, making, and/or importation of DRL’s generic products will actively induce infringement of at least one of the claims of the ’535 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the ’535 patent.

139. If DRL’s ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL’s generic products.

140. DRL’s actions relating to DRL’s ANDA complained of herein were done by and for the benefit of DRL.

141. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the ’535 patent.

142. Plaintiffs do not have an adequate remedy at law.

COUNT VI
DECLARATORY JUDGMENT OF INFRINGEMENT BY DRL OF THE ’535 PATENT

143. Plaintiffs incorporate by reference the prior paragraphs of this Complaint as if fully set forth herein.

144. Plaintiffs’ claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201-02.

145. This Complaint provides notice of the ’535 patent to the extent that DRL did not already have notice of this patent.

146. DRL filed its ANDA in order to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL's generic products in the United States before the expiration of the '535 patent.

147. DRL represented to the FDA that DRL's generic products are pharmaceutically and therapeutically equivalent to AbbVie's QULIPTA® Tablets.

148. After FDA approval of DRL's ANDA, DRL will infringe one or more claims of the '535 patent, either literally or under the doctrine of equivalents under § 271(a) by making, using, offering to sell, selling, and/or importing DRL's generic products, by actively inducing infringement by others under § 271(b), and/or contributing to infringement under § 271(c), unless this Court orders that the effective date of any FDA approval of DRL's ANDA shall be no earlier than the expiration of the '535 patent and any additional periods of exclusivity.

149. DRL knows or should know, and intends that healthcare providers will prescribe and patients will take DRL's generic products for which approval is sought in DRL's ANDA, and therefore will infringe at least one claim in the '535 patent.

150. DRL has knowledge of the '535 patent and, by its promotional activities and proposed package insert for DRL's generic products, knows or should know that it will induce direct infringement of at least one of the claims of the '535 patent, either literally or under the doctrine of equivalents.

151. DRL is aware and/or has knowledge that it will advertise an infringing use and/or instruct how to engage in an infringing use because healthcare professionals and/or patients will use DRL's generic products according to the instructions in the proposed package insert in a way that directly infringes the '535 patent.

152. The offering to sell, sale, making, and/or importation of DRL's generic products would actively induce infringement of at least one of the claims of the '535 patent, either literally or under the doctrine of equivalents. DRL has knowledge and is aware of the '535 patent.

153. If DRL's ANDA is approved, DRL intends to and will offer to sell, sell, and/or import in the United States DRL's generic products.

154. DRL's actions relating to DRL's ANDA complained of herein were done by and for the benefit of DRL.

155. DRL's infringing activity, including the manufacture, use, import, offer to sell, and/or sale of DRL's generic products in the United States, will begin immediately after FDA approves DRL's generic products. Such activity before the expiration of the '535 patent will constitute infringement of one or more claims of the '535 patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

156. As a result of the foregoing facts, there is a real, substantial, and continuing justiciable controversy between Plaintiffs and DRL concerning liability for the infringement of the '535 patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

157. Plaintiffs will be irreparably harmed if DRL is not enjoined from infringing, actively inducing, and contributing to infringement of at least one claim of the '535 patent.

158.Plaintiffs do not have an adequate remedy at law.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

A. The entry of judgment under 35 U.S.C. § 271(e)(2)(A) that DRL has infringed at least one claim of the Patents-in-Suit through DRL's submission of ANDA No. 221029 to the FDA to obtain approval to manufacture, use, import, offer to sell, and/or sell DRL's generic products in the United States before the expiration of the Patents-in-Suit;

B. The entry of judgment that DRL's making, using, offering to sell, selling, or importing DRL's generic products prior to the expiration of the Patents-in-Suit will infringe, actively induce infringement, and/or contribute to the infringement of the Patents-in-Suit under 35 U.S.C. § 271(a), (b), and/or (c);

C. A declaration under 28 U.S.C. § 2201 that if DRL, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with it or on its behalf, engage in the commercial manufacture, use, offer for sale, sale or importation of DRL's generic products prior to the expiration of the Patents-in-Suit, it will constitute an act of infringement pursuant to 35 U.S.C. § 271(a), (b), and/or (c);

D. The issuance of an order that the effective date of any FDA approval of DRL's generic products shall be no earlier than the expiration of the Patents-in-Suit and any additional periods of exclusivity, in accordance with 35 U.S.C. § 271(e)(4)(A);

E. The entry of a permanent injunction, enjoining DRL and all persons acting in concert with DRL from commercially manufacturing, using, offering for sale, or selling DRL's generic products within the United States, or importing DRL's generic products into the United States, until the expiration of the Patents-in-Suit, in accordance with 35 U.S.C. §§ 271(e)(4)(B) and 283;

F. The entry of a permanent injunction, enjoining DRL and all persons acting in concert with DRL from seeking, obtaining, or maintaining approval of the ANDA until the expiration of the Patents-in-Suit, in accordance with 35 U.S.C. §§ 271(e)(4)(B) and 283;

G. The issuance of a declaration that this is an exceptional case and an award to Plaintiffs of costs, expenses, and disbursements in this action, including reasonable attorney fees, pursuant to 35 U.S.C. §§ 285 and 271(e)(4);

H. An award to Plaintiffs of any further appropriate relief under 35 U.S.C. § 271(e)(4); and

I. An award to Plaintiffs of any further and additional relief that this Court deems just and proper.

Dated: November 4, 2026

/s/ Jose L. Linares
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LOCAL RULE 11.2 CERTIFICATION

Pursuant to Local Rule 11.2, I hereby certify that the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceedings.

United States Patent Nos. 12,090,148 (the "'148 Patent"), 12,350,259 (the "'259 Patent"), 12,383,545 (the "'545 Patent"), and 12,465,598 (the "'598 Patent") are currently the subject of proceedings before this Court in *AbbVie Inc. et al. v. Apotex Inc.*, Civil Action No.: 25-18972 (JCG)(JBD), *AbbVie Inc., et al. v. Macleods Pharmaceuticals Ltd., et al.*, Civil Action No.: 25-19038 (JCG)(JBD), *AbbVie Inc., et al. v. Dr. Reddy's Laboratories, Ltd., et al.*, Civil Action No.: 25-19039 (JCG)(JBD), *AbbVie Inc., et al. v. Hetero USA Inc., et al.*, Civil Action No.: 26-114 (JCG)(JBD), *AbbVie Inc., et al. v. MSN Pharmaceuticals Inc., et al.*, Civil Action No.: 26-115 (JCG)(JBD) (*terminated*), and *AbbVie Inc., et al. v. Micro Labs Limited, et al.*, Civil Action No.: 26-518 (JCG)(JBD).

United States Patent Nos. 12,622,897 (the "'897 Patent") and 12,661,341 (the "'341 Patent") are currently the subject of proceedings before this Court in *AbbVie Inc., et al. v. Hetero USA Inc., et al.*, Civil Action No.: 26-10378; *AbbVie Inc., et al. v. Micro Labs Limited, et al.*, Civil Action No.: 26-10379 (JCG)(JBD); *AbbVie Inc. et al. v. Apotex Inc.*, Civil Action No.: 26-11154 (JCG)(JBD); and *AbbVie Inc., et al. v. Macleods Pharmaceuticals Ltd., et al.*, Civil Action No.: 26-11156 (JCG)(JBD).

United States Patent No. 12,758,535 (the "'535 Patent") is currently the subject of proceedings before this Court in *AbbVie Inc., et al. v. Hetero USA Inc., et al.*, Civil Action No.: 26-10378; *AbbVie Inc., et al. v. Micro Labs Limited, et al.*, Civil Action No.: 26-10379 (JCG)(JBD); and *AbbVie Inc., et al. v. Macleods Pharmaceuticals Ltd., et al.*, Civil Action No.: 26-11156 (JCG)(JBD).

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: November4, 2026

/s/ Jose L. Linares
Jose L. Linares